



This is for information and instruction. Do not file it.

HOW TO GET AN ORDER FOR CHILD SUPPORT IN YOUR CASE

These instructions tell you how to get a support order as part of the case you have already filed. Do not use these to file a separate support case.

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STEP 1

FILL OUT THE REQUIRED FORMS.

Before your court hearing, complete as much of the *Order for Support* form as you can. If you and the other parent agree on support, write that agreement in the form and initial each page. Complete the *Support Information Sheet* before the hearing. If the judge orders support, file this form with the Circuit Clerk. If no support is ordered, you do not need to file it.

Use these forms:

- *Order for Support*
- *Support Information Sheet*

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STEP 2

GET READY FOR COURT.

Gather information to help the judge decide how much support is needed, such as how many children need support, how much time each parent spends with them, and both parents' income. You can **estimate** child support using an online calculator: bit.ly/hfs-support-calculator. Even if you can't do the math yourself, bring this information to court.

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STEP 3

ATTEND THE COURT HEARING.

Make sure you arrive to the correct courtroom for your hearing early, whether in person or on Zoom. Have all the documents you need and wait for your case to be called.

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STEP 4

WHAT TO DO AFTER COURT.

If signed, get a copy of the *Order for Support* and file your *Support Information Sheet*. If child support is involved, you may need to complete an *Income Withholding for Support* and send it to the paying parent's employer. There are separate instructions for [How to Fill out the Income Withholding for Support Form](#).

Use these forms:

- *Income Withholding for Support*
- *Letter to Employer*

Laws covering these forms: [\(750 ILCS 5/\)](#) Illinois Marriage and Dissolution of Marriage Act



STEP 1

FILL OUT THE REQUIRED FORMS.

ARE THESE FORMS FOR ME?



These instructions tell you how to get a support order as part of the case you have already filed. Do not use these to file a separate support case.

You may **use these forms to get an order for payment of support** and enforce that order by having the support withheld from the wages of the person ordered to pay.

These instructions apply to any case in which there is an order for:

- Divorce/Dissolution of civil unions
- Paternity cases
- Allocation of parental responsibility (custody and visitation – no marriage)
- Child support (where paternity has already been established)

Do not use these forms if your case does not involve a child support order.

NOTE: The Illinois Department of Healthcare and Family Services can help with getting a paternity test, getting a child support order, and enforcing the order.

To apply, visit: bit.ly/child-support-app. If you cannot use a computer or do not have internet access, you may call 1-800-447-4278. If you have a TTY device, you may call 1-800-526-5812.

Where can I get the forms?

You can find the forms at ilcourts.info/forms. Your courthouse or local library may have self-help resources that can assist you with information and filling out the forms.

Information you will need to fill out the forms:

- The Social Security Numbers of you and the other parent/party (if available);
- The names and birth dates of any children that will be covered;
- Your name, address, telephone number, and email address (if you have one);
- The other parent/party's name, address, telephone number, and email address (if they have one);
- The name, address, and phone number of your employer;
- The name, address, and phone number of the other party's employer;
- The amount of child support to be paid;
- The Remittance ID for the county in which the support order was entered (this is available on the instructions for [How to Fill out the Income Withholding for Support Form](#)); AND
- The number of your court case.



This overview is not legal advice. It provides general instructions on how to use these forms in your court case. It cannot and does not try to cover everything that might happen in your court case. Your use of the forms does not guarantee you will be successful in court.

How a judge handles a case can vary from county to county. **Your county may have special requirements that are not covered in these instructions.** Ask the Circuit Clerk if your county has local rules and, if so, where you can get a copy.

Forms needed:

- **Order for Support:** this is used by the judge to set the amount of child support and how often it is to be paid;
- **Support Information Sheet:** this is used by the Circuit Clerk to set up an account to record when support is received and when it is sent out. It contains personal identifying information so it is impounded by the Clerk (so no one can see it).
- **Income Withholding for Support:** this is used to require the employer of the person ordered to pay support to withhold support payments from wages; after the support is withheld, it is sent to the [State Disbursement Unit](#), which handles payments.
- **Letter to Employer:** this is used by you to send the *Income Withholding for Support* to the employer.

Note: The email address (if you have one) and mailing address you put on these forms are where important legal documents will be sent to you. You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

EXTRA HELP FILLING OUT THE FORMS

Easy Form

Illinois Legal Aid Online has an Easy Form program that helps you complete your forms. Easy Forms ask simple questions and put your answers in the right places on the forms. At the end of the program, you can download or email your forms to e-file or print them.



Easy Forms are free to use. Visit ilao.info/change-child-supp-easy-form or scan the QR code to use the Easy Form.



For more information about going to court, including how to fill out and file forms, call or text **Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are any words or terms used in these instructions that you do not understand, please visit **Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory.



COSTS AND FEES

There may be costs and fees to take part in a court case. This might include fees for filing court documents. Some case types have no fee for filing. Depending on the type of court case, there may be other costs and fees charged – for example, sheriff's fees for serving documents on the other people in the case. If you cannot afford to pay costs and fees, you can ask the court to file for free or at a reduced cost by filing an *Application for Waiver of Court Fees*.

This is a separate form you can find at: ilcourts.info/fee-waiver-forms.

HOW TO FILE THE FORMS



E-filing

- After you fill out your court forms, file them with the Circuit Clerk. This is done by electronic filing, called “e-filing.” You do not have to e-file if:
 - You qualify for an exemption (see the Not E-filing section below) or
 - Your case involves a criminal matter or is filed under the Juvenile Court Act of 1987.
- There may be fees to file your forms. See the Costs & Fees section for more information.
- Most people e-file their forms using Odyssey eFileIL at ilcourts.info/efile.
- Follow step-by-step instructions and watch videos that walk you through the steps for e-filing at ilcourts.info/efile-info.
- E-filing is easier on a computer. It may not work on a cell phone or tablet.
- Original wills may not be e-filed.
- If you do not have access to a computer or if you need help e-filing, take your completed forms to a public library or a Circuit Clerk, Appellate Clerk, or Supreme Court Clerk’s office. These places offer public computers where you can e-file your forms.
 - Your courthouse may offer public computers with a scanner where you can turn your paper forms into electronic files.
 - Librarians and courthouse staff may be able to help you e-file, but they cannot provide legal advice.



Not E-filing

- Some people are not required to e-file, which means they can file paper forms at the courthouse or by mail. People who do not have to e-file are:
 - Inmates in prison or jail who do not have a lawyer.
 - People with a disability that keeps them from e-filing.
- You may also qualify for an exemption from e-filing if you:
 - Do not have internet or computer access in your home or can’t meaningfully use it.
 - Do not have an email account.
 - Do not have a credit card, debit card, or bank account.
 - Have trouble reading, writing, or speaking English.
 - Tried to e-file your forms, but you were not able to because the equipment or help you needed was not available.
 - Are filing an emergency case as allowed by local rule or order.
- To ask for an exemption from e-filing, use the form at ilcourts.info/exempt. If you cannot print this form, then ask for it at your local courthouse.
 - File your *Certification for Exemption from E-Filing* form along with your other court forms at the Circuit Clerk's office or by mail.
 - Bring or send your signed court forms and at least two copies of your forms to the Circuit Clerk’s office. Ask them to stamp your copies and return them to you.
 - If you need to make copies of your forms, you can do that at the Circuit Clerk’s office. They may charge you a fee to make copies.
- There may be fees to file your forms. See the Costs & Fees section for more information.
- If you mail your court forms to the Circuit Clerk’s office, include a stamped envelope addressed to you. The Circuit Clerk will file your forms and then send your copies back to you in the envelope.



WHAT'S NEXT



STEP 2

GET READY FOR COURT.

Collect the information you will need to calculate child support.

- Get the information together, including the documents that you can bring to court to prove where you got the information that went into the calculation.
- The information is listed below. If a particular piece of information does not apply to your case, for example, neither parent gets spousal maintenance, you do not need any documents about that.

Information needed	Documents to bring to court
▪ The number of children asked to be supported?	
▪ Which parent has the majority of parenting time?	
▪ The number of overnights you have with the children per year?	
▪ Your gross income (before taxes). ▪ This can be weekly, biweekly, semi-monthly, monthly, or yearly.	▪ Check stubs, 1099s, W-2s or tax returns.
▪ Does either parent get spousal maintenance?	▪ A copy of the court order showing the amount.
▪ Does either parent pay spousal maintenance?	▪ A copy of the court order showing the amount.
▪ Are the children receiving a Social Security Dependent Benefit Allotment paid on behalf of a retired or disabled parent?	▪ Payment record from Social Security showing the name of the retired or disabled parent and the amount paid.
▪ Does either parent pay child support for children not included in this estimate?	▪ A copy of the administrative or court order showing the amount of support.
▪ Does either parent have other children for whom they are legally responsible, who are not included in your case and for whom there is NOT an order for support? If there are, how many?	▪ Documents showing how much is paid.
▪ Who is providing health insurance coverage for the children included in your case?	▪ Document showing the cost of the insurance (either a bill or a paystub) and whether it is family or individual coverage. ▪ If it is the State of Illinois or no one, you do not need any documents.
▪ Does either parent pay child care expenses for the children included in this estimate?	▪ Bills or receipts of payment showing the amount paid.
▪ Does either parent pay extraordinary school and/or extracurricular expenses for the children included in your case?	▪ Bills or receipts of payment showing the amount paid.

Use the information collected to determine how much support you should get.

- Go to the Illinois Department of Healthcare and Family Services online child support estimator: bit.ly/hfs-support-calculator.
- Add the information to the worksheet and then press “Calculate Support.”
- Click on the “View Worksheet” button and print out the worksheet. Bring the worksheet to court along with all of the information you collected to do the worksheet.
- If you do not do a worksheet, bring all of the information you collected and give it to the judge.

NOTE: Before a support order is entered, the judge may order you to complete a financial affidavit in which you will provide information about your income and expenses. Find that form at ilcourts.info/financial-aff.



STEP 3

ATTEND THE COURT HEARING.

Follow the instructions for the type of case you filed for attending the court hearing.

- If your court date is in person:
 - Get to the courthouse at least 30 minutes early.
 - Go to the courtroom number listed on your court date notice. If your notice does not have a courtroom number, look for a list of cases at the courthouse or ask the Circuit Clerk.
 - Check in with the courtroom staff and wait for your name and case number to be called.
 - When your case is called, walk to the judge and introduce yourself.



Make sure you know how to attend your court date.

Your court date could be in person, by phone, or by video. If it is by phone or video, it is called a “Remote Appearance.” Call the Circuit Clerk or visit their website for more information. To find the phone number for your Circuit Clerk, visit ilcourts.info/clerks.

- If your court date is by phone or video:
 - Make sure to have the call-in or login information for your court date and make sure your technology is working.
 - Follow the instructions on the court notice you received. Call the Circuit Clerk or Circuit Court, or visit their websites for specific technology instructions.
 - Instructions for how to appear by phone or video are here: ilcourts.info/remote-resources.



STEP 4

WHAT TO DO AFTER COURT.

- Get a file-stamped copy of the Order for Support.
- File the *Support Information Sheet* with the Circuit Clerk and get a file-stamped copy for your records.
- If you e-file the *Support Information Sheet*, select “Confidential” for the security type when uploading the document (in some counties you may have to file this in person).
- Send a copy of the *Order for Support* to the other parent either by email, by hand, or by mail and file a *Proof of Delivery* with the Circuit Clerk. You can find the *Proof of Delivery* form at ilcourts.info/proof-delivery.
- There are separate instructions for [How to Fill Out the Income Withholding for Support Form](#).

Sending the Income Withholding For Support.

- Complete these forms for cases in which:
 - (1) the person paying support is employed;
 - (2) you know the contact information for the employer; and
 - (3) child support only or child support and maintenance were ordered.
- **Income Withholding for Support:** complete this form only after you have a signed *Order for Support*. Do not file this form with the Circuit Clerk. To complete this form you will need:
 - The name, address, and phone number of the employer of the person paying support;
 - The full name and social security number for the person paying support;
 - Your full name;
 - The full name and date of birth for all children covered by the *Order*;
 - Remittance ID number (this can be found in the instructions for the *Income Withholding for Support*), the amount of support to be paid and how often it is to be paid; AND
 - Your contact information— if this should not be public because of domestic violence, use alternate contact information.
- **Letter to Employer:** complete this form after you have completed the *Income Withholding for Support*.
- Option 1: Send the *Letter to Employer* along with a copy of the *Order for Support* and the *Income Withholding for Support* to the employer of the person who will be paying the support.
 - Send this letter by certified mail with a return receipt. You will get back a green postcard telling you the date the letter was delivered to the employer.
 - Keep this postcard in a safe place and the certified mail receipt in a safe place so that you have it in case it is necessary to show proof that the employer got the *Income Withholding for Support*.
- Option 2: Contact the Illinois Department of Healthcare and Family Services and apply for assistance in serving the *Income Withholding for Support*.
 - Once your case is registered, the Department will serve the *Income Withholding for Support* on the employer. In addition, they will monitor your case and send a new *Income Withholding for Support* if the person paying child support changes employers.
 - They can also help you to enforce the child support order in court if necessary and in collecting unpaid child support. To apply, visit: bit.ly/child-support-app. If you cannot use a computer or do not have internet access, you may call 1-800-447-4278. If you have a TTY device, you may call 1-800-526-5812.

Follow-Up for Child Support Cases.

- If you do not receive your first payment within 60 days, follow up:
 - Contact the employer to see if they have started withholding and sent payments to the State Disbursement Unit.
 - If they have, contact the State Disbursement Unit (877-225-7077 or ilsdu.com/contactus.do) to check on the payment status.
 - Make sure the State Disbursement Unit has your correct mailing address.
 - If payments were sent to you, but have not arrived yet, check with your local post office.
 - If issues continue, contact a lawyer or the Division of Child Support Enforcement (1-800-447-4278).



YOU'VE COMPLETED THE STEPS TO GET A SUPPORT ORDER.